

Reverse the Rescission

The 1994 traffic comparison does not support Dale Case's conclusion that CEMEX Lyons traffic has not increased.

A narrower, fact-centered brief for reinstating the April 10, 2024 termination determination.

Accept the 1994 comparison for argument's sake. It still favors termination.

The rescission rationale should fail on its own chosen ground: when traffic is normalized as Average Daily Trips in passenger-car equivalents, modern CEMEX traffic is materially higher than the 1994 baseline.

456

1994 baseline total ADTs

729

2023 calculated total ADTs

+273

increase vs 1994

+60%

increase vs 1994

+397

inbound raw-material ADTs

- The strongest evidence is not overall background traffic. It is CEMEX-generated traffic, especially raw-material deliveries caused by the loss of local/conveyor supply.
- PT0658 Wyoming limestone tonnage confirms the magnitude: 518,482 tons in 2024-25 equals about 20,739 loaded 25-ton trucks, 41,479 truck movements, and 498 ADTs.
- The 1994 comparison is not a shield for CEMEX. Properly calculated, it is evidence that the use was altered and intensified.

The right unit is ADTs in passenger-car equivalents

Why Landis-style raw truck counts understate the impact

- Boulder County and CDOT analyze access impacts as Average Daily Trips.
- A truck entering and leaving the plant creates two trips.
- A heavy truck is converted to passenger-car equivalents.
- One heavy-truck round trip can represent six ADTs under the workbook's normalization.

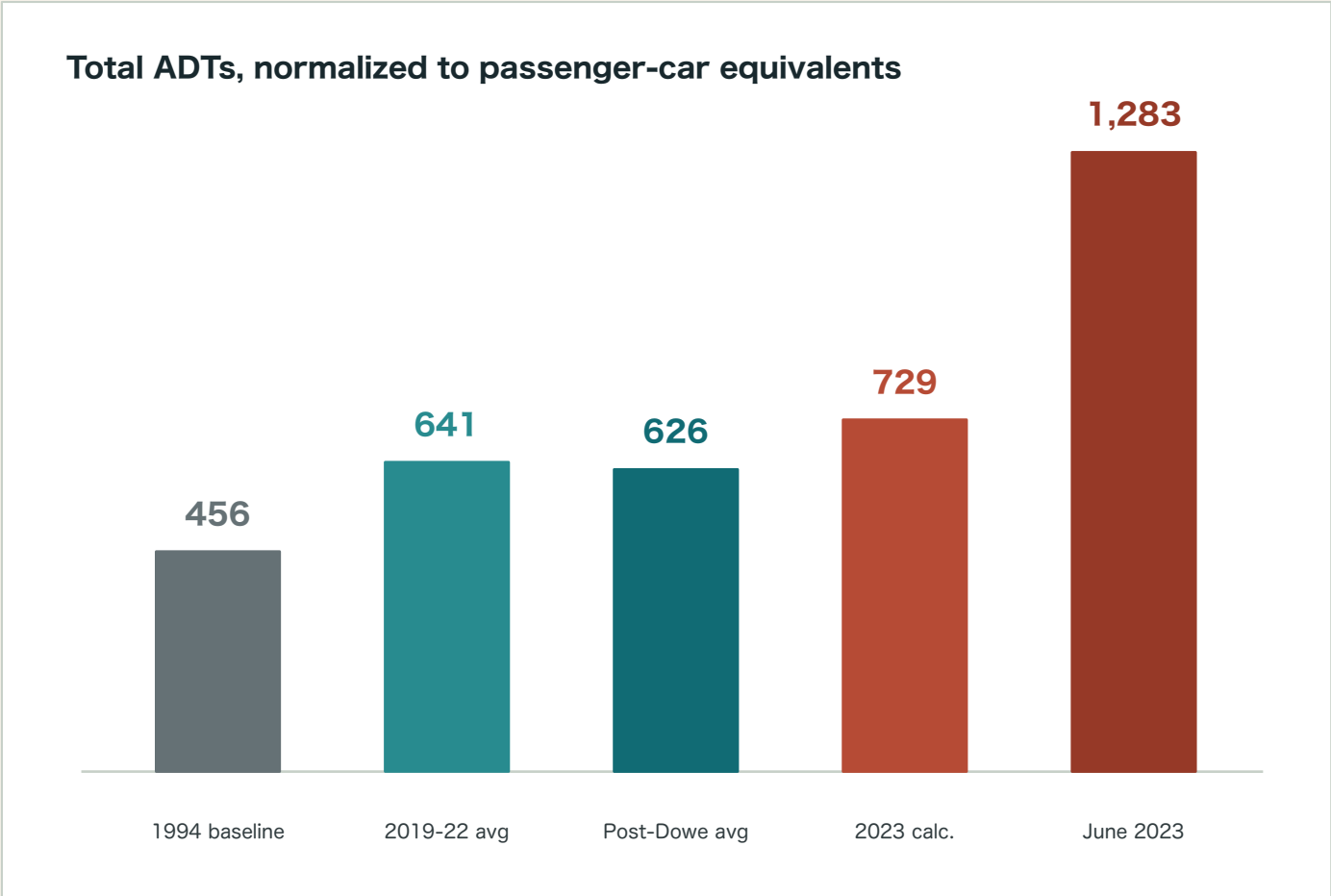
If Dale Case relied on unnormalized truck-volume comparisons, the conclusion is not comparing like with like.

A simple formula

**Annual truck volume /
workdays x 2 trips x 3 PCE**

Example from the Landis-flaws worksheet: 20,106 truck trips in 2023 divided by 251 workdays is about 80, not 67. Converted to ADTs, that is about 481, not 402.

Total CEMEX traffic is higher than the 1994 baseline

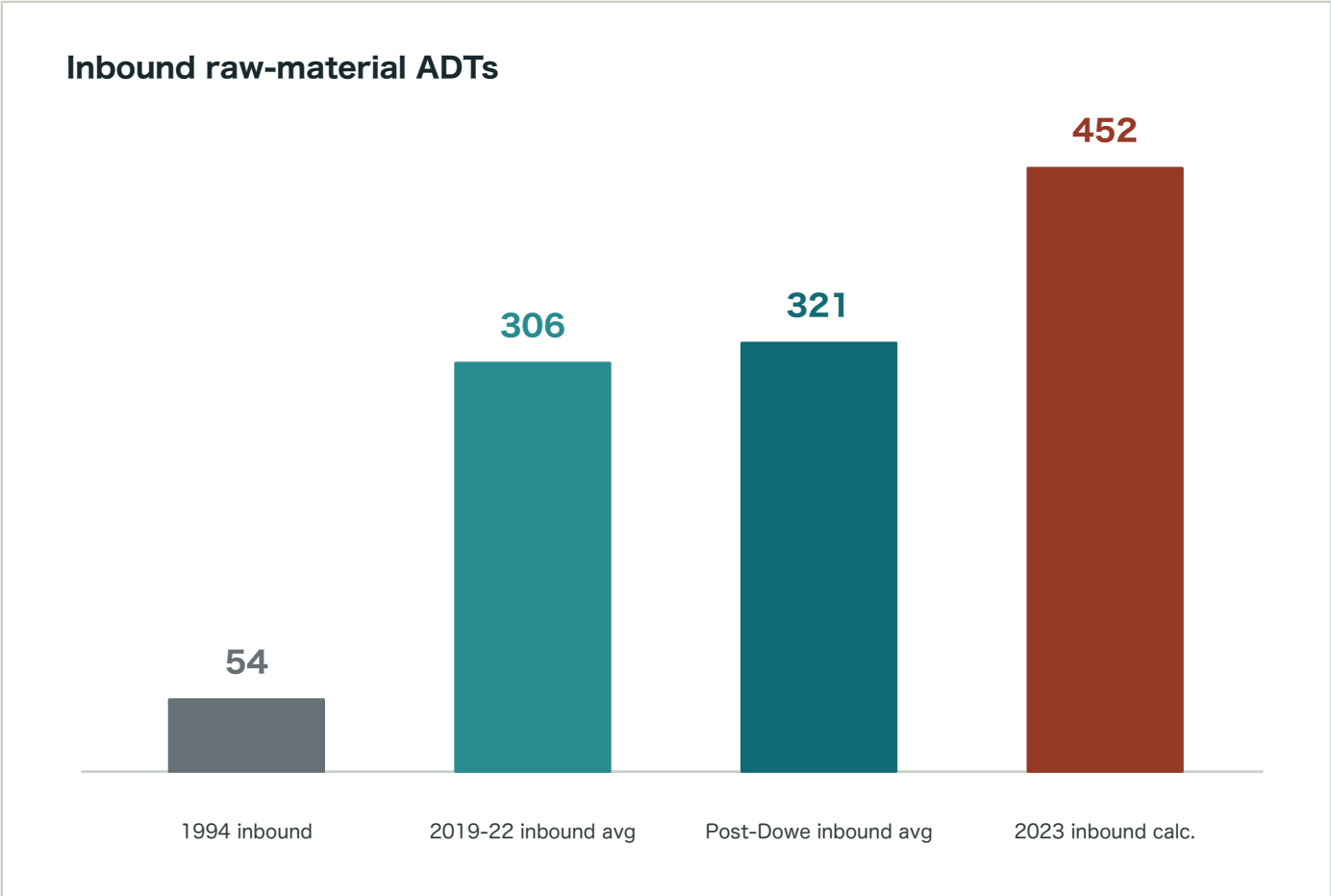


The no-increase premise fails several ways

- 2019-22 average is about 185 ADTs above 1994.
- Post-Dowe actual monthly average is about 170 ADTs above 1994.
- 2023 calculated annual ADTs are about 273 above 1994.
- The Stantec June 2023 figure is roughly 827 ADTs above 1994.

Even a conservative 1994 baseline does not rescue the rescission.

The operational-change evidence is much stronger than total traffic



This is the case

In 1994, the record shows about 54 inbound raw-material ADTs. In 2023, the calculated inbound raw-material ADTs are about 452.

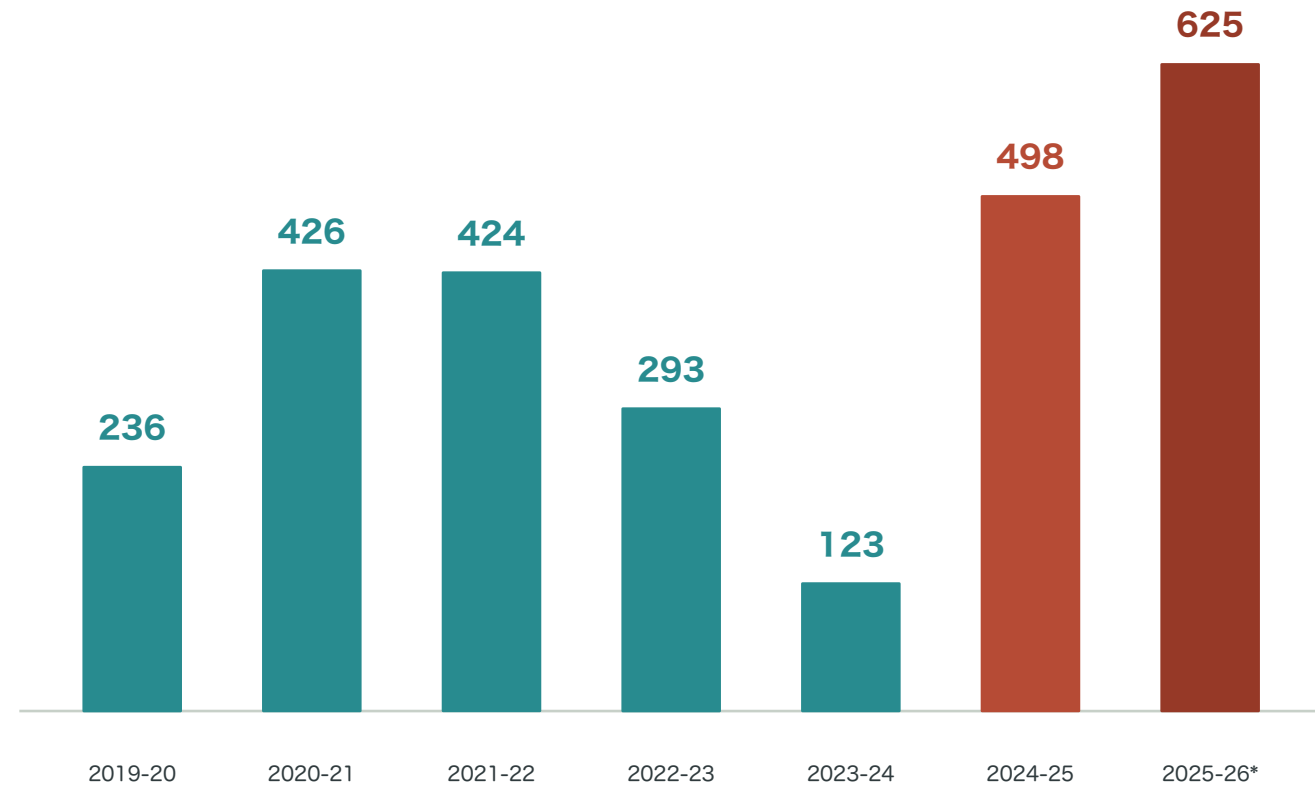
+397 +729%

additional inbound ADTs increase vs 1994

A traffic comparison that buries this change inside total plant operations misses the point of Article 4-1003.C.1.d.

PT0658 tonnage turns the supply-chain change into truck traffic

Wyoming limestone, converted to 25-ton truck-equivalent ADTs



The calculation

tons / 25 = loaded trucks

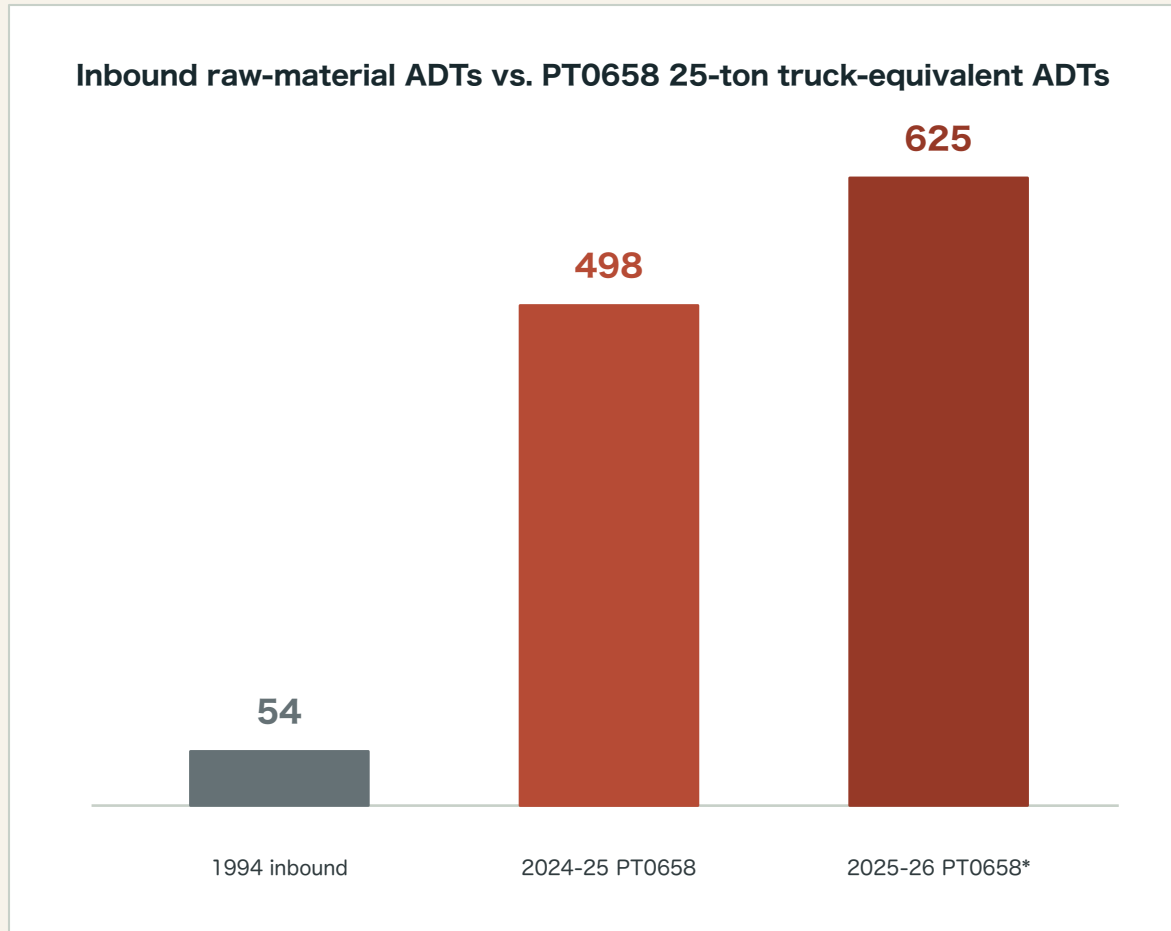
loaded trucks x 2 =
movements

movements x 3 PCE / 250
workdays = ADTs

2024-25 reported 518,482
tons: about 20,739 loaded 25-
ton trucks, 41,479 truck
movements, and 498 ADTs.

*2025-26 report is marked under review.

Wyoming limestone alone overwhelms the 1994 inbound baseline



This is the missing comparison

- 1994 inbound raw-material baseline: about 54 ADTs.
- PT0658 2024-25 Wyoming limestone alone: about 498 ADTs, before shale and other materials.
- That is roughly 9.2x the 1994 inbound baseline.
- The under-review 2025-26 PT0658 figure implies about 625 ADTs, roughly 11.6x the 1994 inbound baseline.

This directly undercuts Dale Case's no-increase view: modern raw-material trucking is far beyond the 1994 operation.

CEMEX-era PT0658 reports from Sept. 14, 2018 through Feb. 27, 2025 total about 2.13 million tons: roughly 85,329 loaded 25-ton trucks and 170,658 truck movements.

1994 is not equivalent to the modern trucked-feedstock operation

1994

- About 56,739 tons externally trucked.
- About 361,766 tons conveyed or hauled locally.
- Inbound raw-material ADTs: about 54.
- Local supply still anchored the plant operation.

2022-23

- Dowe Flats closes September 30, 2022.
- Raw materials shift to external highway trucks.
- Workbook shows limestone from Wyoming and shale from Arcosa/Boulder County.
- PT0658 reported 304,715 tons in 2022-23 and 518,482 tons in 2024-25.
- Inbound raw-material ADTs jump into the 300-450 range.

Why it matters

The nonconforming use was not merely producing cement. Its historic operation depended on local quarry/conveyor logistics. Replacing that system with regional truck deliveries is a material alteration.

Dale Case's view collapses the exact factual distinction the Code is meant to police.

The Landis-based no-increase conclusion is not reliable

Omitted 1994

The flaws worksheet states the plant became nonconforming on October 18, 1994, but the Landis comparison omits 1994.

Weak regression

Historic pre-1994 truck volumes are estimated, not actual, and the model extrapolates across different operating eras.

Mixed units

CDOT background traffic, truck volumes, daily trucks, and ADTs are not normalized to the same impact unit.

Wrong equivalence

2019-22 Dowe Flats plus Wyoming supply is not equivalent to 1994 limited Larimer supply plus Lyons/local operations.

Bad arithmetic

Appendix B's daily truck calculations are identified as wrong, including the 2023 example.

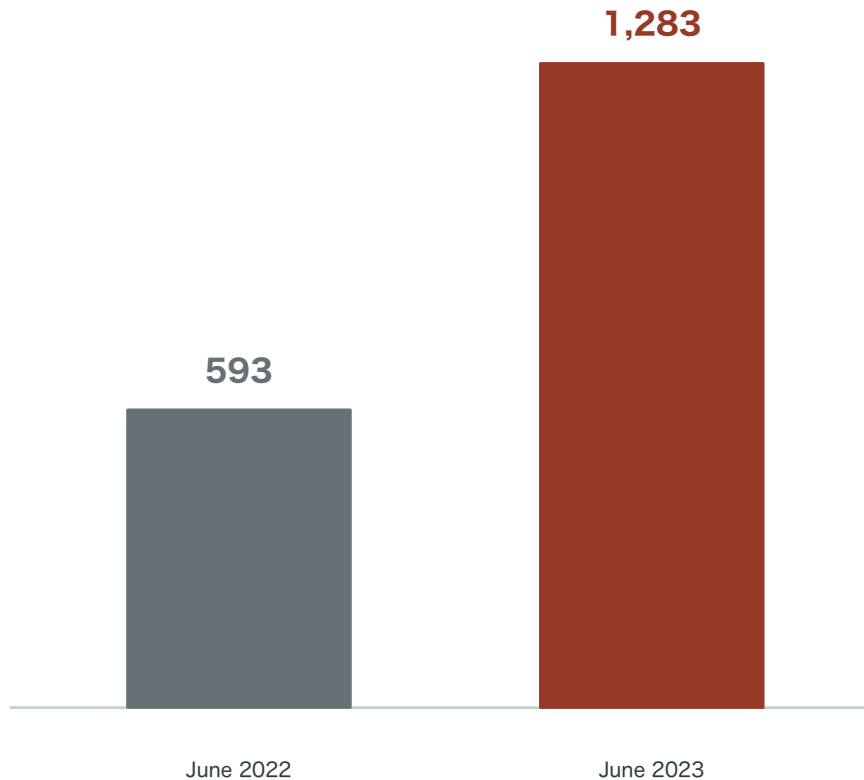
Ignored spike

The Stantec June 2023 logs show 1,283 ADTs and should not disappear from the analysis.

A rescission should not rest on a consultant report with unresolved math, unit, baseline, and data-selection problems.

The Stantec June 2023 spike is corroboration, not the whole case

Stantec ADTs cited in April 2024 termination notice



How to use this evidence

- Do not make June 2023 the only proof. Stantec later argued its study was a limited access analysis.
- Use it as an actual observed spike showing what the new supply chain can do.
- Then anchor the case in annual/monthly CEMEX data and inbound raw-material ADTs.
- Together, the data show both acute spikes and structural traffic growth.

The County's original April 2024 termination had a real factual basis. The corrected 1994 comparison strengthens it.

The strongest legal frame: traffic is proof of an altered operation

1 What changed

CEMEX shifted the plant from local/adjoining raw-material supply to distant, trucked feedstock. That is the operational alteration.

2 Why traffic matters

Offsite truck impacts are the evidence and consequence of that alteration: hazard, nuisance, neighborhood impact, and need for services.

3 Why CEMEX defenses fail

Background road traffic, estoppel, takings, and due-process rhetoric do not erase CEMEX's burden to prove it stayed within the nonconforming use.

Silvestro's additive point: CEMEX is wrong to say only onsite structural changes matter. Article 4-1003.C.1.d reaches any other alteration of the use with offsite hazard, nuisance, neighborhood, or service impacts.

Article 4-1003.C.1.d does not require a crash epidemic

The trigger

Any alteration of the nonconforming use that creates or threatens hazard or nuisance, adversely affects neighborhood character, or intensifies the use of land or need for services.

The raw-material trucking shift fits this clause because it changes how the industrial use operates and pushes impacts onto public roads and neighbors.

Why the rescission should be reversed

- Traffic is not the land use; it is proof that CEMEX altered how the land use operates.
- The decisive category is inbound raw material, where the increase is dramatic.
- Background traffic on SH-66 does not rebut CEMEX-generated raw-material traffic.
- CEMEX bears the burden to show it has not expanded beyond the nonconforming use.
- The April 2024 termination should be reinstated or reissued on corrected findings.

A stronger reversal request: correct the baseline, reinstate termination

- 1

Correct the factual finding

Find that CEMEX-generated traffic has increased compared to 1994 when normalized as ADTs/PCEs.
- 2

Adopt the legal frame

Find that truck traffic is evidence of the altered operation: distant raw-material sourcing by highway truck.
- 3

Add PT0658 as an exhibit

Use Wyoming tonnage and 25-ton truck math to show the trucked-feedstock operation dwarfs 1994 inbound traffic.
- 4

Reinstate or reissue termination

Restore the April 10, 2024 determination with corrected findings and preserve appeal rights.

Public message: the County should not rescind a valid termination based on a traffic conclusion the record itself contradicts.

The plain-English story

The question

**Did CEMEX stay within
the historic
grandfathered use?**

The data

**No. The plant changed how
it gets raw materials. The
truck traffic is the proof:
total ADTs are up, inbound
ADTs are way up, and
Wyoming limestone alone
dwarfs the old baseline.**

The remedy

**Reverse the rescission
and reinstate termination
on corrected findings.**

Selected sources for the revised traffic brief

- CEMEX Historical Data.xlsx: Data Dec18, Exhibit - ADT Summary, Exhibit - Total ADTs, Exhibit - Post Dowe Flats ADTs, Landis Flaws, Inbound Material Modes.
- Wyoming Mine PT0658 annual reports, 2020 through 2026; PT0658_Wyoming_Traffic_Calculations.csv.
- Boulder County Community Planning & Permitting, Notice of Termination of Nonconforming Status, April 10, 2024.
- Landis Evans + Partners, CEMEX Lyons Plant Traffic Study, November 5, 2024.
- Stantec supplemental memo, November 7, 2024, and Stantec access traffic study figures cited by Boulder County.
- James R. Silvestro letters to Dale Case for GNL/SOSVV, July 9, 2024 and December 20, 2024.
- Martin Marietta/SOSVV Board of Adjustment precedent packets regarding lapse and estoppel, 2022.
- Boulder County Land Use Department letter to CEMEX, October 8, 2002.
- Boulder County Land Use Code Article 4-1003.
- Boulder County Resolution 2022-075 denying SU-22-0003.

This deck is a public-education and advocacy synthesis. Before official filing, attach the underlying workbook tables and primary PDFs as exhibits.